

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julia Vittore	Team: Squad #15	CCRB Case #: 202105664	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 09/21/2021 5:30 PM	Location of Incident: Intersection of West 169th Street and Jerome Avenue	18 Mo. SOL 3/21/2023	Precinct: 44
Date/Time CV Reported Tue, 09/21/2021 8:31 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 09/21/2021 8:31 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Richard Castellano	25087	957429	044 PCT
2. DTS Steven Ramunno	05143	930874	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Kimberly Torres	26835	965573	044 PCT
2. PO Andrew Sokolohorsky	07254	963763	044 PCT
3. PO Kevin Leonard	06998	963608	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Steven Ramunno	Abuse: Detective Steven Ramunno stopped § 87(2)(b)	A . Exonerated
B . PO Richard Castellano	Force: Police Officer Richard Castellano used physical force against § 87(2)(b)	B . Substantiated
C . PO Richard Castellano	Discourtesy: Police Officer Richard Castellano spoke discourteously to § 87(2)(b)	C . Substantiated
D . DTS Steven Ramunno	Abuse: Detective Steven Ramunno failed to provide § 87(2)(b) with a business card.	D . Substantiated

Case Summary

On September 22, 2021, § 87(2)(b) filed this complaint with the CCRB via telephone.

On September 21, 2021, at approximately 5:30 p.m. § 87(2)(b) was stopped by Detective Steven Ramunno of the 44th Precinct (**Allegation A: Abuse of Authority – Stop, exonerated**) at the intersection of West 169th Street and Jerome Avenue in the Bronx. Police Officer Richard Castellano of the 44th Precinct shoved § 87(2)(b) and said, “Stop fucking bumping into me,” (**Allegation B: Force – Physical force, substantiated; Allegation C: Discourtesy – Word, substantiated**). § 87(2)(b) was not issued a business card at the conclusion of the encounter (**Allegation D: Abuse of Authority – Failure to provide RTKA card, substantiated**). No arrests made or summonses issued.

The investigation obtained body-worn-camera video of the incident captured by Detective Ramunno (Board Review 01 and 02), Police Officer Kevin Leonard (Board Review 03 and 04), Police Officer Richard Castellano (Board Review 05 and 06), Police Officer Andrew Sokolohorsky (Board Review 07 and 08) and Police Officer Kimberly Torres (Board Review 09 and 10).

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Steven Ramunno stopped § 87(2)(b).

Allegation (D) Abuse of Authority: Detective Ramunno failed to provide § 87(2)(b) with a business card.

On September 27, 2021, § 87(2)(b) was interviewed by the CCRB. On May 13, 2022, Police Officer Torres was interviewed by the CCRB. On May 12, 2022, Police Officer Castellano was interviewed by the CCRB. On August 23, 2022, Detective Ramunno was interviewed by the CCRB. On August 31, 2022, Police Officer Sokolohorsky was interviewed by the CCRB.

It is undisputed that § 87(2)(b) was stopped for operating a gasoline-powered unregistered scooter with no license plates. The officers interviewed consistently stated that § 87(2)(b) was observed operating the scooter without a helmet. The officer statements obtained are inconsistent in regard to which member of service initiated the stop. It is also undisputed that § 87(2)(b) was let go with a warning at the conclusion of the encounter without being provided with business cards, names, badge numbers or any other form of identifying information from any of the officers involved in the stop.

§ 87(2)(b) stated that he parked his scooter on Jerome Avenue underneath the above ground subway tracks and subsequently removed his helmet. He further stated that the scooter had a 50-CC engine and he did not believe it needed to be registered due to the type of engine. While he was stopped, a marked NYPD patrol van approached him with the turret lights on.

Detective Ramunno stated that any gasoline-operated scooter must be registered and insured with the Department of Motor Vehicles and is required to have license plates. For this reason, it was determined that a stop of § 87(2)(b) would be conducted to determine why the scooter was not registered. Detective Ramunno did not recall whose decision it was to initiate the stop. At the conclusion of the encounter, it was determined that § 87(2)(b) had committed the following infractions: operating a motorized scooter without a motorcycle license;

operating a motorized scooter without a helmet; and operating an unregistered and uninsured motorized scooter. Detective Ramunno exercised his “discretionary powers” as the senior member of service on scene by deciding not to issue § 87(2)(b) summonses and let him go with a warning. Detective Ramunno did not provide § 87(2)(b) with a business card or any other identifying information and did not instruct any of the other officers to do so. Detective Ramunno stated that according to his understanding of standard procedure, it would have been incumbent on the officer primarily interacting with § 87(2)(b) to issue him a business card. He further stated that he did not know if he would have been required to issue § 87(2)(b) a business card in this circumstance.

Police Officer Torres stated that she did not recall which of the members of service in the van initially noticed § 87(2)(b). As the van approached the complainant, Detective Ramunno engaged the vehicle’s turret lights and informed § 87(2)(b) that he was being stopped over the loudspeaker. Police Officer Torres later stated that she did not recall if lights or sirens were engaged prior to § 87(2)(b) being stopped, but she believed they were.

Police Officer Castellano stated Detective Ramunno made the decision to stop § 87(2)(b).

Police Officer Sokolohorsky stated that he, as the operator of the vehicle, initiated the stop by turning the turret lights on and honking the horn. Detective Ramunno’s body worn camera video (Board Review 01 and 02) was played from 00:40 to 00:58. This section of video has no audio. Detective Ramunno can be seen gesturing with his hand, after which the van speeds and up and pulls up to where § 87(2)(b) is seated on a stationary scooter. Police Officer Sokolohorsky stated in reference to the video that Detective Ramunno was pointing out the window at § 87(2)(b) and noted that he was driving recklessly without a helmet or license plate. Police Officer Sokolohorsky then stated that he and Detective Ramunno noticed § 87(2)(b) simultaneously, but that Detective Ramunno initiated the stop. Police Officer Sokolohorsky initially stated that the members of service involved in the stop made the mutual decision not to issue § 87(2)(b) any summonses. After being shown section 04:20 to 04:31 of his body worn camera video (Board Review 07 and 08), which shows Detective Ramunno instructing Police Officer Sokolohorsky to let § 87(2)(b) go with a warning, he then stated that he deferred to Detective Ramunno in regard to whether or not to issue any summonses. He further stated that it was ultimately decided by Detective Ramunno that § 87(2)(b) would be let go with a warning. Police Officer Sokolohorsky explained that Detective Ramunno is familiar with the area and that he typically defers to him while on patrol in the neighborhood.

Police Officer Castellano’s body worn camera video (Board Review 05 and 06) captures the initial stop. At 01:00, Detective Ramunno makes the first initial verbal contact with § 87(2)(b). Detective Ramunno waves § 87(2)(b) over to him and asks him how he is doing and where his helmet is. § 87(2)(b) responds that he does not speak English.

According to *NYS Vehicle and Traffic Law § 123* (Board Review 11), a motorcycle is defined as every motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels. According to *NYS Vehicle and Traffic Law § 410* (Board Review 12), no motorcycles shall be operated or driven upon public highways without first being registered. According to *NYS Vehicle and Traffic Law § 381* (Board Review 13), it shall be unlawful for any person to operate or ride upon a motorcycle unless he wears a protective helmet.

All the members of service interviewed consistently reported that § 87(2)(b) was stopped after he was observed operating an unregistered motorized scooter without a helmet. Police Officers Sokolohorsky, Castellano and Torres identified Detective Ramunno as having initiated the stop. Detective Ramunno himself did not deny initiating the stop, and instead stated that he did not recall whose decision it was to stop § 87(2)(b). Detective Ramunno also referred to himself as the “senior member of service” on scene, and further stated that as the senior member of service, he used his discretionary powers to let § 87(2)(b) off with a warning. This statement is supported by video evidence (Board Review 07 and 08), as well as the statements provided by the other officers involved in the stop; further indicating that Detective Ramunno was directing the other members of service prior to and during the stop. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) stated that his scooter was motorized, did not have license plates and was not registered, a fact which was also reported by all of the members of service involved in the stop. It was also consistently reported by officers that § 87(2)(b) was seen operating the scooter prior to the stop without wearing a helmet. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) it is recommended that **Allegation A** is closed as **exonerated**.

According to *NYPD Patrol Guide Procedure 203-09* (Board Review 14), effective October 19, 2018, when a uniformed member of service interacts with a civilian they are required to offer Right to Know business card upon conclusion of law enforcement activities, except in cases when a summons is issued or an arrest is made, or exigent circumstances are present (i.e., physical resistance, flight, imminent danger of physical injury or damage to property, or other factors make such procedure impractical).

As previously established through officer statements and body worn camera video (Board Review 01 and 02; 05 and 06), Detective Ramunno was the member of service who initiated the stop and with whom § 87(2)(b) initially interacted. He has also been identified through officer statements and body worn camera video (Board Review 01 and 02; Board Review 07 and 08) as directing the actions of the other officers during the stop. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) recommends that **Allegation D** is closed as **substantiated**.

Allegation (B) Force: Police Officer Richard Castellano used physical force against § 87(2)(b).

Allegation (C) Discourtesy: Police Officer Richard Castellano spoke discourteously to § 87(2)(b).

§ 87(2)(b)

None of the officers interviewed had an independent recollection of Police Officer Castellano using profanity or speaking discourteously to § 87(2)(b) with the exception of Police Officer Castellano, who stated that he used profanity while addressing the complainant.

§ 87(2)(b) stated that Police Officer Castellano approached him from behind while he was speaking to Detective Ramunno. He was not aware that Police Officer Castellano was behind him until he placed his hands on the back of his shoulder and pushed him. § 87(2)(g)

§ 87(2)(b) then turned to face Police Officer Castellano, at which point, Police Officer Castellano placed his hand on § 87(2)(b) shoulder, pressed his thumb into the front of his shoulder between his collar bone and shoulder, and shoved him backward. § 87(2)(b) did not fall down as a result of being shoved. § 87(2)(b) was not informed why Police Officer Castellano shoved him. § 87(2)(b) does not speak English and did not allege the use of profanity by Police Officer Castellano.

Police Officer Castellano stated that § 87(2)(b) was asked to step over toward the front passenger's side of the van. § 87(2)(b) instead stood directly in front of Police Officer Castellano with his back to him. § 87(2)(b) backside was touching Police Officer Castellano's crotch and gun belt and his foot was on his shoe. Police Officer Castellano moved § 87(2)(b) forward to create space between them by placing his palm on his back and extending his arm forward. After being repositioned by Police Officer Castellano, § 87(2)(b) immediately backed up into him again. Police Officer Castellano then turned § 87(2)(b) around and positioned his back against the van. Police Officer Castellano further stated that he said, "Stop fucking bumping into me," to § 87(2)(b) while repositioning him the second time for emphasis.

Police Officer Torres' body worn camera video (Board Review 09 and 10) shows § 87(2)(b) getting off his scooter and standing in front of Police Officer Castellano. He takes a step backward and bumps into Police Officer Castellano. After § 87(2)(b) takes a step back, Police Officer Castellano pushes him forward from behind, forcibly rotates him by the shoulders and shoves him against the RMP van. There is no audio during this section of video. Police Officer Sokolohorsky's body worn camera video (Board Review 07 and 08) captures the same event from the other side of Police Officer Castellano. At 01:00, the video is partially obstructed by Police Officer Sokolohorsky's hand, however, Police Officer Castellano's hand is visible making contact with § 87(2)(b) back and pushing him forward. This section of video has audio. Police Officer Castellano can be heard saying, "Stand over there. Stop fucking bumping into me," after he pushes § 87(2)(b) forward.

Police Officer Torres described § 87(2)(b) demeanor when he was initially stopped as "fine" and that he understood he was being stopped and got off the scooter. Police Officer Torres stated that at no point during the incident was § 87(2)(b) suspected of any criminal activity. Police Officer Torres did not recall Police Officer Castellano pushing § 87(2)(b) into the side of the van. Police Officer Torres was shown Police Officer Castellano's body worn camera video (Board Review 05 and 06). The video was played from 1:00 to 1:13. In this section of video, § 87(2)(b) backs up toward Police Officer Castellano. Police Officer Castellano places his hand on his back and pushes him forward toward the van. Police Officer Torres stated that she did not have an independent recollection of the event shown, but upon viewing the section of video, she recalled that § 87(2)(b) was standing with his back to Police Officer Castellano and stepped backwards onto his feet.

Detective Ramunno stated that § 87(2)(b) was moving around, thereby creating a safety concern, due to the fact that it was unknown whether he had any weapons on him. Detective Ramunno did not recall whether § 87(2)(b) had any visible bulges on his person and did not have any specific safety concerns or a reason to believe that he was armed or dangerous. § 87(2)(b) bumped into Police Officer Castellano. Police Officer Castellano subsequently positioned him to stand near the van. Detective Ramunno did not recall the manner in which Police Officer Castellano positioned § 87(2)(b) toward the van. He did not recall Police Officer Castellano shoving § 87(2)(b) nor any other kind of physical force being used against § 87(2)(b) at any point during the incident. He further

to have “no legitimate purpose” other than to belittle the civilian(s) involved.

§ 87(2)(g)

Police Officer Castellano used profanity while addressing § 87(2)(b) by stating, “Stand over there. Stop fucking bumping into me.” Body worn camera video (Board Review 09 and 10) also showed that § 87(2)(b) appeared to have accidentally bumped into Police Officer Castellano, prompting him to use profanity. § 87(2)(g)

It is therefore recommended that **Allegation C** is closed as **substantiated**.

Civilian and Officer CCRB Histories

This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 18).

- Detective Ramunno has been a member of service for 19 years and has been a subject in 32 CCRB complaints and 64 allegations. Three have been pleaded and substantiated against Detective Ramunno. Specifically, it was alleged:
 - 201607043 involved substantiated allegations of abuse of authority (question) against Detective Ramunno. The Board did not make a discipline recommendation and the NYPD imposed formalized training.
 - 201805543 involved substantiated allegations of discourtesy (word) against Detective Ramunno. The Board did not make a discipline recommendation and the NYPD imposed instructions.
 - 202001332 involved substantiated allegations of abuse of authority (failure to provide RTKA card) against Detective Ramunno. The Board recommended formalized training and the NYPD imposed formalized training.
- In the current case, it was alleged that Detective Ramunno abused his authority by initiating a stop of a civilian and failing to provide a RTKA card. In reference to his case history, this would be the second complaint in which it was alleged that Detective Ramunno failed to provide a RTKA card to a civilian when it was required that he do so.
- Police Officer Castellano has been a member of service for seven years and has been a subject in seven CCRB complaints and 10 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.

- As of October 3, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 19).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 15

Investigator:	<u>Julia Vittore</u>	<u>Inv. Julia Vittore</u>	<u>11/29/22</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u><i>Simon Wang</i></u>	<u>IM Simon Wang</u>	<u>12/02/22</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date